

EPA Compliance Workshops Don't Reduce Violations

Lessons from “The effect of compliance assistance on pollution discharges and violations of environmental regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026.

Offering polluters free help to follow the rules doesn't make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance workshops found the workshops didn't reduce violations.

BACKGROUND

Environmental enforcement in the U.S. has long centered on penalties: inspect facilities, catch violations, and levy fines. **Compliance assistance** takes a different approach: **regulators help facilities follow the rules in the first place, through free workshops, guidance, and technical support.** The premise is that many violations stem from confusion or limited expertise rather than deliberate corner-cutting. While compliance assistance is becoming increasingly favored by the Environmental Protection Agency (EPA) over penalties, **whether it's actually effective has rarely been tested.**

In a new study, researchers set out to better understand how effective compliance assistance actually is, using data on hundreds of wastewater treatment facilities regulated by the Ohio EPA. Facilities that had recently been cited for violations were invited to participate in compliance workshops, which were rolled out over several months. Those that volunteered to attend received free training on how to comply with the Clean Water Act. The researchers then compared the facilities that attended the workshops against those that had not yet been trained, tracking whether violations fell after the workshops.

WHAT THE STUDY FOUND

THE WORKSHOPS' EFFECT ON VIOLATIONS, MONTH BY MONTH

Source: Ferraro & Shimshack (2026).



Note: Each point compares violations at trained facilities against facilities not yet trained, month by month around training (month 0). After training, an effect from the workshops would show up as the line moving away from zero; instead it stays flat, and the shaded band of statistical uncertainty always includes “no change.” The workshops had no detectable effect.

Evaluating whether a policy works is hard, because we never get to see what facilities would have done without it. You might start with the simplest comparison: did violations fall at trained facilities after the workshops? The trouble is that violations were already falling across the board in these years, so a before-and-after look would credit the workshops with a decline that was happening anyway. The next instinct is to compare facilities that attended against those that didn't. Yet the workshops were voluntary — the facilities that signed up may have been more motivated to clean up to begin with, so any gap between them could reflect who volunteered rather than what the training did.

The researchers got around this by comparing facilities trained early against ones that had *also* signed up but had not yet been trained. Those facilities were just as motivated, having volunteered too, and they were tracked over the same months, so the across-the-board decline showed up in both groups equally. The staggered rollout — workshops spread over several months — is what made those not-yet-trained facilities available as a fair comparison. That comparison holds only if the not-yet-trained facilities really would have followed the same path as the trained ones, which is something the researchers have to assume.

The two groups declined almost identically. Violations at trained facilities fell by about as much as at facilities still waiting to be trained, and no additional drop appeared once a facility had been through a workshop. **Trained facilities were no less likely to violate than facilities that had not yet been trained.**

TAKEAWAYS

THE LIMITS OF ASSISTANCE

If free guidance has no effect on violations, the obstacles to compliance likely lie in the costs, capacity, or incentives that shape how facilities operate day to day, not a lack of knowledge. That matters for a program that the EPA is considering expanding. As agencies increasingly turn to assistance in place of enforcement, this study suggests compliance assistance should be treated as a hypothesis to be tested, not a solution to be assumed. **A widely adopted tool still has to prove it works.**

PROOF BEFORE SCALE

The workshops are a case study in how easily a policy can appear to work. Promising before-and-after comparisons can capture trends that were already in motion, but a careful comparison can separate a real effect from a coincidence. Before a promising program is expanded to new places, its apparent success should have to survive that kind of scrutiny. **Good evidence is what separates a policy that works from one that only looks like it does.**